

The Wild Life (Protection) Amendment Act, 2002

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The Wild Life (Protection) Amendment Act, 2002

UNION OF INDIA

India

The Wild Life (Protection) Amendment Act, 2002

Act 16 of 2003

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The Wild Life (Protection) Amendment Act, 2002

An Act further to amend the Wild Life (Protection) Act, 1972.

BE it enacted by Parliament in the Fifty- third Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Wild Life (Protection) Amendment Act, 2002 .

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act.

2.

Amendment of long title.-

In the Wild Life (Protection) Act, 1972 (53 of 1972

) (hereinafter referred to as the principal Act), for the long title, the following long title shall be substituted, namely:- " An Act to provide for the protection of wild animals, birds and plants and for matters connected therewith or ancillary or incidental thereto with a view to ensuring the ecological and environmental security of the country."

3.

Amendment of section 2.-

In section 2 of the principal Act,-(a) for clause (1), the following clause shall be substituted, namely:- ' (1)" animal" includes mammals, birds, reptiles, amphibians, fish, other chordates and invertebrates and also includes their young and eggs;';

(b)

for clause (4), the following clause shall be substituted, namely:- ' (4)" Board" means a State Board for Wild Life constituted under sub- section (1) of section 6;';

(c)

clause (8) shall be omitted;

(d)

for clause (9), the following clause shall be substituted, namely:- ' (9)" Collector" means the chief officer- in- charge of the revenue administration of a district or any other officer not below the rank of a Deputy Collector as may be appointed by the State Government under section 18B in this behalf;';

(e)

for clause (11), the following clause shall be substituted, namely:- ' (11)" dealer" in relation to any captive animal, animal article, trophy, uncured trophy, meat or specified plant, means a person, who carries on the business of buying or selling any such animal or article, and includes a person who undertakes business n any single transaction;';

(f)

for clause (12A), the following clauses shall be substituted, namely:- ' (12A)" Forest officer" means the Forest officer appointed under clause (2) of section 2 of the Indian Forest Act, 1927 (16 of 1927

) or under any other Act for the time being in force in a State;(12B) " forest produce" shall have the same meaning as in sub- clause (b) of clause (4) of section 2 of the Indian Forest Act, 1927 (16 of 1927

);';

(g)

in clause (16), for sub- clauses (a) and (b), the following sub- clauses shall be substituted, namely:- " (a) killing or poisoning of any wild animal or captive animal and every attempt to do so;

(b)

capturing, coursing, snaring, trapping, driving or baiting any wild or captive animal and every attempt to do so;";

(h)

for clause (18A), the following clause shall be substituted, namely:- ' (18A)" livestock" means farm animals and includes buffaloes, bulls, bullocks, camels, cows, donkeys, goats, sheep, horses, mules, yaks, pigs, ducks, geese, poultry and their young but does not include any animal specified in Schedules I to V;';

(i)

for clauses (19) and (20), the following clauses shall be substituted, namely:- ' (19)" manufacturer" means a person who manufactures articles from any animal or plant specified in Schedules I to V and VI, as the case may be;(20) " meat" includes blood, bones, sinew, eggs, shell or carapace, fat and flesh with or without skin, whether raw or cooked, of any wild animal or captive animal, other than a vermin;

(20A)

" National Board" means the National Board for Wild Life constituted under section 5A;';

(j)

after clause (24), the following clause shall be inserted, namely:- ' (24A)" protected area" means a National Park, a sanctuary, a conservation reserve or a community reserve notified under sections 18, 35, 36A and 36C of the Act;';

(k)

for clauses (25B) and (26), the following clauses shall be substituted, namely:-' (25B)" reserve forest" means the forest declared to be reserved by the State Government under section 20 of the Indian Forest Act, 1927 (16 of 1927

), or declared as such under any other State Act;(26) " sanctuary" means an area declared as a sanctuary by notification under the provisions of Chapter IV of this Act and shall also include a deemed sanctuary under sub- section (4) of section 66;";

(l)

clause (28) shall be omitted;

(m)

for clause (30), the following clause shall be substituted, namely:-' (30)" taxidermy", with its grammatical variations and cognate expressions, means the curing, preparation or preservation or mounting of trophies;";

(n)

in clause (31), for sub- clause (b), the following sub- clause shall be substituted, namely:-" (b) antler, bone, carapace, shell, horn, rhinoceros horn, hair, feather, nail, tooth, tusk, musk, eggs, nests and honeycomb;";

(o)

for clause (36), the following clause shall be substituted, namely:-' (36)" wild animal" means any animal specified in Schedules I to IV and found wild in nature;";

(p)

for clause (37), the following clause shall be substituted, namely:-' (37)" wild life" includes any animal, aquatic or land vegetation which forms part of any habitat;";

(q)

in clause (39), for the words" but does not include a circus and an establishment", the words" and includes a circus and rescue centres but does not include an establishment" shall be substituted.

4.

Amendment of section 3.-

In section 3 of the principal Act,-(i) in sub- section (1), clause (b) shall be omitted;

(ii)

for sub- section (3), the following sub- section shall be substituted, namely:-" (3) The officers and other employees appointed under this section shall be required to assist the Director."

5.

Amendment of section 4.-

In section 4 of the principal Act, in sub- section 1, for clause (bb), the following clause shall be substituted, namely:-" (bb) Honorary Wild Life Wardens;".

6.

Insertion of new sections 5A to 5C.-

After section 5 of the principal Act, the following sections shall be inserted, namely:-" 5A. Constitution of the National Board for Wild Life.- (1) The Central Government shall, within three months from the date of commencement of the Wild Life (Protection) Amendment Act, 2002 , constitute the National Board for Wild Life consisting of the following members, namely:-(a) the Prime Minister as Chairperson;

(b)

the Minister in- charge of Forests and Wild Life as Vice- Chairperson;

(c)

three members of Parliament of whom two shall be from the House of the People and one from the Council of States;

(d)

Member, Planning Commission in- charge of Forests and Wild Life;

(e)

five persons to represent non- governmental organisations to be nominated by the Central Government;

(f)

ten persons to be nominated by the Central Government from amongst eminent conservationists, ecologists and environmentalists;

- (g)
the Secretary to the Government of India in- charge of the Ministry or Department of the Central Government dealing with Forests and Wild Life;
- (h)
the Chief of the Army Staff;
- (i)
the Secretary to the Government of India in- charge of the Ministry of Defence;
- (j)
the Secretary to the Government of India in- charge of the Ministry of Information and Broadcasting;
- (k)
the Secretary to the Government of India in- charge of the Department of Expenditure, Ministry of Finance;
- (l)
the Secretary to the Government of India, Ministry of Tribal Welfare;
- (m)
the Director- General of Forests in the Ministry or Department of the Central Government dealing with Forests and Wild Life;
- (n)
the Director- General of Tourism, Government of India;
- (o)
the Director- General, Indian Council for Forestry Research and Education, Dehradun;
- (p)
the Director, Wild Life Institute of India, Dehradun;
- (q)
the Director, Zoological Survey of India;
- (r)
the Director, Botanical Survey of India;
- (s)
the Director, Indian Veterinary Research Institute;
- (t)
the Member- Secretary, Central Zoo Authority;
- (u)
the Director, National Institute of Oceanography;
- (v)
one representative each from ten States and Union territories by rotation, to be nominated by the Central Government;
- (w)
the Director of Wild Life Preservation who shall be the Member- Secretary of the National Board.(2) The term of office of the members other than those who are members ex officio, the manner of filling vacancies referred to in clauses (e), (f) and (v) of sub- section (1), and the procedure to be followed in the discharge of their functions by the members of the National Board shall be such, as may be prescribed.
- (3)
The members (except members ex officio) shall be entitled to receive such allowances in respect of expenses incurred in the performance of their duties as may be prescribed.
- (4)
Notwithstanding anything contained in any other law for the time being in force, the office of a member of the National Board shall not be deemed to be an office of profit.
- 5B.
Standing Committee of the National Board.-(1) The National Board may, in its discretion, constitute a Standing Committee for the purpose of exercising such powers and performing such duties as may be delegated to the Committee by the National Board.
- (2)
The Standing Committee shall consist of the Vice- Chairperson, the Member- Secretary, and not more than ten

members to be nominated by the Vice- Chairperson from amongst the members of the National Board.

(3)

The National Board may constitute committees, sub- committees or study groups, as may be necessary, from time to time in proper discharge of the functions assigned to it.

5C.

Functions of the National Board.-(1) It shall be the duty of the National Board to promote the conservation and development of wild life and forests by such measures as it thinks fit.

(2)

Without prejudice to the generality of the foregoing provision, the measures referred to therein may provide for-(a) framing policies and advising the Central Government and the State Governments on the ways and means of promoting wild life conservation and effectively controlling poaching and illegal trade of wild life and its products;

(b)

making recommendations on the setting up of and management of national parks, sanctuaries and other protected areas and on matters relating to restriction of activities in those areas;

(c)

carrying out or causing to be carried out impact assessment of various projects and activities on wild life or its habitat;

(d)

reviewing from time to time, the progress in the field of wild life conservation in the country and suggesting measures for improvement thereto; and

(e)

preparing and publishing a status report at least once in two years on wild life in the country."

7.

Substitution of new section for section 6.-

For section 6 of the principal Act, the following section shall be substituted, namely:-" 6. Constitution of State Board for Wild Life.- (1) The State Government shall, within a period of six months from the date of commencement of the Wild Life (Protection) Amendment Act, 2002 constitute a State Board for Wild Life consisting of the following members, namely:-(a) the Chief Minister of the State and in case of the Union territory, either Chief Minister or Administrator, as the case may be - Chairperson;

(b)

the Minister in- charge of Forests and Wild Life- Vice- Chairperson;

(c)

three members of the State Legislature or in the case of a Union territory with Legislature, two members of the Legislative Assembly of that Union territory;

(d)

three persons to represent non- governmental organisations dealing with wild life to be nominated by the State Government;

(e)

ten persons to be nominated by the State Government from amongst eminent conservationists, ecologists and environmentalists including at least two representatives of the Scheduled Tribes;

(f)

the Secretary to the State Government or the Government of the Union territory, as the case may be, in- charge of Forests and Wild Life;

(g)

the Officer in- charge of the State Forest Department;

(h)

the Secretary to the State Government, Department of Tribal Welfare;

(i)

the Managing Director, State Tourism Development Corporation;

(j)

an officer of the State Police Department not below the rank of Inspector- General;

(k)

a representative of the Armed Forces not below the rank of a Brigadier to be nominated by the Central Government;

(l)

the Director, Department of Animal Husbandry of the State;

(m)

the Director, Department of Fisheries of the State;

(n)

an officer to be nominated by the Director, Wild Life Preservation;

(o)

a representative of the Wild Life Institute of India, Dehradun;

(p)

a representative of the Botanical Survey of India;

(q)

a representative of the Zoological Survey of India;

(r)

the Chief Wild Life Warden, who shall be the Member- Secretary.(2) The term of office of the members other than those who are members ex officio and the manner of filling vacancies referred to in clauses (d) and (e) of sub- section (1) and procedure to be followed shall be such, as may be prescribed.

(3)

The member (except members ex officio) shall be entitled to receive such allowances in respect of expenses incurred in the performance of their duties as may be prescribed."

8.

Amendment of section 8.-

In section 8 of the principal Act,-(i) for the words" the Wild Life Advisory Board", the words" State Board for Wild Life" shall be substituted;

(ii)

for clause (a), the following clause shall be substituted, namely:-" (a) in the selection and management of areas to be declared as protected areas;"

9.

Amendment of section 11.-

In section 11 of the principal Act, in sub- section 1,-(i) in clause (a), the following provisos and Explanation thereunder shall be inserted, namely:-" Provided that no wild animal shall be ordered to be killed unless the Chief Wild Life Warden is satisfied that such animal cannot be captured, tranquilised or translocated: Provided further that no such captured animal shall be kept in captivity unless the Chief Wild Life Warden is satisfied that such animal cannot be rehabilitated in the wild and the reasons for the same are recorded in writing. Explanation.- For the purposes of clause (a), the process of capture or translocation, as the case may be, of such animal shall be made in such manner as to cause minimum trauma to the said animal.";

(ii)

in clause (b), for the words" such animal or cause such animal to be hunted", the words" such animal or group of animals in a specified area or cause such animal or group of animals in that specified area to be hunted" shall be substituted.

10.

Substitution of heading of Chapter IV.-

In Chapter IV of the principal Act, for the heading" SANCTUARIES, NATIONAL PARK AND CLOSED AREAS", the following heading shall be substituted, namely:-" PROTECTED AREAS".

11.

Insertion of new sections 18A and 18B.-

After section 18 of the principal Act, the following sections shall be inserted, namely:-" 18A. Protection to sanctuaries.-

(1) When the State Government declares its intention under sub- section (1) of section 18 to constitute any area, not comprised within any reserve forest or territorial waters under that sub- section, as a sanctuary, the provisions of sections 27 to 33A (both inclusive) shall come into effect forthwith.(2) Till such time as the rights of affected persons are finally settled under sections 19 to 24 (both inclusive), the State Government shall make alternative arrangements

required for making available fuel, fodder and other forest produce to the person affected, in terms of their rights as per the Government records.

18B.

Appointment of Collectors.- The State Government shall appoint, an officer to act as Collector under the Act, within ninety days of coming into force of the Wild Life (Protection) Amendment Act, 2002 , or within thirty days of the issue of notification under section 18, to inquire into and determine the existence, nature and extent of rights of any person in or over the land comprised within the limits of the sanctuary which may be notified under sub- section(1) of section 18."

12.

Amendment of section 21.-

In section 21 of the principal Act, after the words" the Collector shall", the words" within a period of sixty days," shall be inserted.

13.

Insertion of new section 25A.-

After section 25 of the principal Act, the following section shall be inserted, namely:-" 25A. Time- limit for completion of acquisition proceedings.- (1) The Collector shall, as far as possible, complete the proceedings under sections 19 to 25 (both inclusive), within a period of two years from the date of notification of declaration of sanctuary under section 18.(2) The notification shall not lapse if, for any reasons, the proceedings are not completed within a period of two years."

14.

Amendment of section 26A.-

In section 26A of the principal Act, for sub- section (3), the following sub- section shall be substituted, namely:-" (3) No alteration of the boundaries of a sanctuary shall be made by the State Government except on a recommendation of the National Board."

15.

Substitution of new section for section 29.-

For section 29 of the principal Act, the following section shall be substituted, namely:-" 29. Destruction, etc., in a sanctuary prohibited without a permit.- No person shall destroy, exploit or remove any wild life including forest produce from a sanctuary or destroy or damage or divert the habitat of any wild animal by any act whatsoever or divert, stop or enhance the flow of water into or outside the sanctuary, except under and in accordance with a permit granted by the Chief Wild Life Warden, and no such permit shall be granted unless the State Government being satisfied in consultation with the Board that such removal of wild life from the sanctuary or the change in the flow of water into or outside the sanctuary is necessary for the improvement and better management of wild life therein, authorises the issue of such permit: Provided that where the forest produce is removed from a sanctuary the same may be used for meeting the personal bona fide needs of the people living in and around the sanctuary and shall not be used for any commercial purpose. Explanation.- For the purposes of this section, grazing or movement of livestock permitted under clause (d) of section 33 shall not be deemed to be an act prohibited under this section."

16.

Amendment of section 33.-

In section 33 of the principal Act, after clause (a), the following proviso shall be inserted, namely:-" Provided that no construction of commercial tourist lodges, hotels, zoos and safari parks shall be undertaken inside a sanctuary except with the prior approval of the National Board;"

17.

Insertion of new section 33B.-

After section 33A of the principal Act, the following section shall be inserted, namely:-" 33B. Advisory Committee.- (1) The State Government shall constitute an Advisory Committee consisting of the Chief Wild Life Warden or his nominee not below the rank of Conservator of Forests as its head and shall include a member of the State Legislature within whose constituency the sanctuary is situated, three representatives of Panchayati Raj Institutions, two representatives of non- governmental organisations and three individuals active in the field of wild life conservation, one representative each from departments dealing with Home and Veterinary matters, Honorary Wild Life Warden, if any, and the officer- in- charge of the sanctuary as Member- Secretary.(2) The Committee shall render advice on measures to be taken for better conservation and management of the sanctuary including participation of the people living within and around the sanctuary.

(3)

The Committee shall regulate its own procedure including quorum."

18.

Insertion of new section 34A.-

After section 34 of the principal Act, the following section shall be inserted, namely:-" 34A. Power to remove encroachment.- (1) Notwithstanding anything contained in any other law for the time being in force, any officer not below the rank of an Assistant Conservator of Forests may,-(a) evict any person from a sanctuary or National Park, who unauthorisedly occupies Government land in contravention of the provisions of this Act;

(b)

remove any unauthorised structures, buildings, or constructions erected on any Government land within any sanctuary or National Park and all the things, tools and effects belonging to such person shall be confiscated, by an order of an officer not below the rank of the Deputy Conservator of Forests: Provided that no such order shall be passed unless the affected person is given an opportunity of being heard.(2) The provisions of this section shall apply notwithstanding any other penalty which may be inflicted for violation of any other provision of this Act."

19.

Amendment of section 35.-

In section 35 of the principal Act,-(i) for sub- sections (5) and (6), the following sub- sections shall be substituted, namely:-" (5) No alteration of the boundaries of a National Park by the State Government shall be made except on a recommendation of the National Board.(6) No person shall destroy, exploit or remove any Wild Life including forest produce from a National Park or destroy or damage or divert the habitat of any wild animal by any act whatsoever or divert, stop or enhance the flow of water into or outside the National Park, except under and in accordance with a permit granted by the Chief Wild Life Warden, and no such permit shall be granted unless the State Government being satisfied in consultation with the National Board that such removal of wild life from the National Park or the change in the flow of water into or outside the National Park is necessary for the improvement and better management of wild life therein, authorises the issue of such permit: Provided that where the forest produce is removed from a National Park, the same may be used for meeting the personal bona fide needs of the people living in and around the National Park and shall not be used for any commercial purpose.";

(ii)

after sub- section (8), the following Explanation shall be inserted, namely:-" Explanation.- For the purposes of this section, in case of an area, whether within a sanctuary or not, where the rights have been extinguished and the land has become vested in the State Government under any Act or otherwise, such area may be notified by it, by a notification, as a National Park and the proceedings under sections 19 to 26 (both inclusive) and the provisions of sub- sections (3) and (4) of this section shall not apply."

20.

Insertion of new sections 36A to 36D.-

After section 36 of the principal Act, the following sections shall be inserted, namely:-" 36A. Declaration and management of a conservation reserve.- (1) The State Government may, after having consultations with the local communities, declare any area owned by the Government, particularly the areas adjacent to National Parks and sanctuaries and those areas which link one protected area with another, as a conservation reserve for protecting landscapes, seascapes, flora and fauna and their habitat: Provided that where the conservation reserve includes any land owned by the Central Government, its prior concurrence shall be obtained before making such declaration.(2) The provisions of sub- section (2) of section 18, sub- sections (2), (3) and (4) of section 27, sections 30, 32 and clauses (b) and (c) of section 33 shall, as far as may be, apply in relation to a conservation reserve as they apply in relation to a sanctuary.

36B.

Conservation reserve management committee.- (1) The State Government shall constitute a conservation reserve management committee to advise the Chief Wild Life Warden to conserve, manage and maintain the conservation reserve.

(2)

The committee shall consist of a representative of the forest or Wild Life Department, who shall be the Member-Secretary of the Committee, one representative of each Village Panchayat in whose jurisdiction the reserve is located,

three representative of non- governmental organisations working in the field of wild life conservation and one representative each from the Department of Agriculture and Animal Husbandry.

(3)

The Committee shall regulate its own procedure including the quorum.

36C.

Declaration and management of community reserve.-(1) The State Government may, where the community or an individual has volunteered to conserve wild life and its habitat, declare any private or community land not comprised within a National Park, sanctuary or a conservation reserve, as a community reserve, for protecting fauna, flora and traditional or cultural conservation values and practices.

(2)

The provisions of sub- section (2) of section 18, sub- sections (2), (3) and (4) of section 27, sections 30, 32 and clauses (b) and (c) of section 33 shall, as far as may be, apply in relation to a community reserve as they apply in relation to a sanctuary.

(3)

After the issue of notification under sub- section (1), no change in the land use pattern shall be made within the community reserve, except in accordance with a resolution passed by the management committee and approval of the same by the State Government.

36D.

Community reserve management committee.-(1) The State Government shall constitute a Community Reserve management committee, which shall be the authority responsible for conserving, maintaining and managing the community reserve.

(2)

The committee shall consist of five representatives nominated by the Village Panchayat or where such Panchayat does not exist by the members of the Gram Sabha and one representative of the State Forests or Wild Life Department under whose jurisdiction the community reserve is located.

(3)

The committee shall be the competent authority to prepare and implement the management plan for the community reserve and to take steps to ensure the protection of wild life and its habitat in the reserve.

(4)

The committee shall elect a Chairman who shall also be the Honorary Wild Life Warden on the community reserve.

(5)

The committee shall regulate its own procedure including the quorum."

21.

Omission of section 37.-

Section 37 of the principal Act shall be omitted.

22.

Amendment of section 38B.-

In section 38B of the principal Act, in sub- section 1, after the words" every member", the words" other than the Member-Secretary" shall be inserted.

23.

Amendment of section 38H.-

In section 38H of the principal Act, after sub- section 1, the following sub- section shall be inserted, namely:-" (1A) On and after the commencement of the Wild Life (Protection) Amendment Act, 2002 a zoo shall not be established without obtaining the prior approval of the Authority."

24.

Substitution of new section for section 38-I.-

For section 38-I of the principal Act, the following section shall be substituted, namely:-" 38I. Acquisition of animals by a zoo.- (1) Subject to the other provisions of this Act, no zoo shall acquire, sell or transfer any wild animal or captive animal specified in Schedules I and II except with the previous permission of the Authority.(2) No zoo shall acquire, sell or transfer any wild or captive animal except from or to a recognised zoo."

25.

Amendment of section 40.-

In section 40 of principal Act,-(i) in sub- section (1), for the words" or any uncured trophy", the words" or animal article, trophy or uncured trophy" shall be substituted;

(ii)

after sub- section (2), the following sub- sections shall be inserted, namely:-" (2A) No person other than a person having a certificate of ownership, shall, after the commencement of the Wild Life (Protection) Amendment Act, 2002 acquire, receive, keep in his control, custody or possession any captive animal, animal article, trophy or uncured trophy specified in Schedule I or Part II of Schedule II, except by way of inheritance.(2B) Every person inheriting any captive animal, animal article, trophy or uncured trophy under sub- section (2A) shall, within ninety days of such inheritance make a declaration to the Chief Wild Life 42 shall apply as if the declaration had been made under sub- section (1) of section 40: Warden or the authorised officer and the provisions o sections 41 and Provided that nothing in sub- sections (2A) and (2B) shall apply to the live elephant."

(iii)

in sub- section (4), for the words" any animal article", the words" any animal or animal article" shall be substituted.

26.

Insertion of new section 40A.-

After section 40 of the principal Act, the following section shall be inserted, namely:-" 40A. Immunity in certain cases.-

(1) Notwithstanding anything contained in sub- sections (2) and (4) of section 40 of this Act, the Central Government may, by notification, require any person to declare to the Chief Wild Life Warden or the authorised offi er, any captive animal, animal article, trophy or uncured trophy derived from animals specified in Schedule I or Part II of Schedule II in his control, custody or possession, in respect of which no declaration had been made under sub- section (1) or sub- section (4) of section 40, in such form, in such manner and within such time as may be prescribed.(2) Any action taken or purported to be taken for violation of section 40 of this Act at any time before the commencement of the Wild Life (Protection) Amendment Act, 2002 shall not be proceeded with and all pending proceedings shall stand abated.

(3)

Any captive animal, animal article, trophy or uncured trophy declared under sub- section (1), shall be dealt with in such manner and subject to such conditions as may be prescribed."

27.

Amendment of section 42.-

In section 42 of the principal Act, the following proviso shall be added, namely:-" Provided that before issuing the certificate of ownership in respect of any captive animal, the Chief Wild Life Warden shall ensure that the applicant has adequate facilities for housing, maintenance and upkeep of the animal."

28.

Substitution of new section for section 43.-

For section 43 of the principal Act, the following section shall be substituted, namely:-" 43. Regulation of transfer of animal, etc.- (1) No person having in his possession captive animal, animal article, trophy or uncured trophy in respect of which he has a certificate of ownership shall transfer by way of sale or offer for sale or by any ot er mode of consideration of commercial nature, such animal or article or trophy or uncured trophy.(2) Where a person transfers or transports from the State in which he resides to another State or acquires by transfer from outside the State, any such animal, animal article, trophy or uncured trophy in respect of which he has a certificate of ownership he shall, within thirty days of the transfer or transport, report the transfer or transport to the Chief Wild Life Warden or the authorised officer within whose jurisdiction the transfer or transport is effected.

(3)

Nothing in this section shall apply-(a) to tail feather of peacock and the animal article or trophies made therefrom;

(b)

to transfer of captive animals between recognised zoos subject to the provisions of section 38-I, and transfer amongst zoos and public museums."

29.

Amendment of section 50.-

In section 50 of the principal Act,-(i) in sub- section (3A), for the words" Wild Life Warden," the words" an Assistant Conservator of Forests" shall be substituted;

(ii)

in sub- section (4), the words" under intimation to the Chief Wild Life Warden or the officer authorised by him in this regard" shall be inserted at the end;

(iii)

for sub- section (6), the following sub- section shall be substituted, namely:-" (6) Where any meat, uncured trophy, specified plant or part or derivative thereof is seized under the provisions of this section, the Assistant Director of Wild Life Preservation or any other officer of a gazetted rank authorised by him in this behalf r the Chief Wild Life Warden or the authorised officer may arrange for the disposal of the same in such manner as may be prescribed.";

(iv)

in sub- section (8), for the words" Wild Life Warden", the words" an officer not below the rank of Assistant Conservator of Forests authorised by the State Government in this behalf" shall be substituted.

30.

Amendment of section 51.-

In section 51 of the principal Act,-(i) in sub- section (1), for the first and second provisos, the following provisos shall be substituted, namely:-" Provided that where the offence committed is in relation to any animal specified in Schedule I or Part II of Schedule II or meat of any such animal or animal article, trophy or uncured trophy derived from such animal or where the offence relates to hunting in a sanctuary or a National Park or altering the boundaries of a sanctuary or a National Park, such offence shall be punishable with imprisonment for a term which shall not be less than three years but may extend to seven years and also with fine which shall not be less than ten thousand rupees: Provided further that in the case of a second or subsequent offence of the nature mentioned in this sub- section, the term of the imprisonment shall not be less than three years but may extend to seven years and also with fine which shall not be less than twenty-five thousand rupees.";

(ii)

in sub- section (1A), for the words" one year", the words" three years" and for the words" five thousand rupees", the words" ten thousand rupees" shall be substituted.

31.

Insertion of new section 51A.-

After section 51 of the principal Act, the following section shall be inserted, namely:-" 51A. Certain conditions to apply while granting bail.- When any person accused of, the commission of any offence relating to Schedule I or Part II of Schedule II or offences relating to hunting inside the boundaries of National Park or wild life sanctuary or altering the boundaries of such parks and sanctuaries, is arrested under the provisions of the Act, then notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974) no such person who had been previously convicted of an offence under this Act shall, be released on bail unless-(a) the Public Prosecutor has been given an opportunity of opposing the release on bail; and

(b)

where the Public Prosecutor opposes the application, the Court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail.".

32.

Substitution of new section for section 54.- For section 54 of the principal Act, the following section shall be substituted, namely:-" 54. Power to compound offences.-

(1)

The Central Government may, by notification, empower the Director of Wild Life Preservation or any other officer not below the rank of Assistant Director of Wild Life Preservation and in the case of a State Government in the similar manner, empower the Chief Wild Life Warden or any officer of a rank not below the rank of a Deputy Conservator of Forests, to accept from any person against whom a reasonable suspicion exists that he has committed an offence against this Act, payment of a sum of money by way of composition of the offence which such person is suspected to have committed.(2) On payment of such sum of money to such officer, the suspected person, if in custody, shall be discharged and no further proceedings in respect of the offence shall be taken against such person.

(3)

The officer compounding any offence may order the cancellation of any licence or permit granted under this Act to the offender, or if not empowered to do so, may approach an officer so empowered, for the cancellation of such licence or

permit.

(4)

The sum of money accepted or agreed to be accepted as composition under sub- section (1) shall, in no case, exceed the sum of twenty- five thousand rupees: Provided that no offence, for which a minimum period of imprisonment has been prescribed in section 51, shall be compounded."

33.

Amendment of section 55.-

In section 55 of the principal Act,-(i) after clause (a), the following clause shall be inserted, namely:-" (aa) the Member-Secretary, Central Zoo Authority in matters relating to violation of the provisions of Chapter IVA; or";

(ii)

in clause (b), after the words" State Government", the words" subject to such conditions as may be specified by that Government" shall be inserted;

(iii)

after clause (b), the following clause shall be inserted, namely:-" (bb) the officer- in- charge of the zoo in respect of violation of provisions of section 38J; or".

34.

Insertion of new Chapter VIA.-

After Chapter VI of the principal Act, the following Chapter shall be inserted, namely:-' CHAPTER VI A FORFEITURE OF PROPERTY DERIVED FROM ILLEGAL HUNTING AND TRADE

58A.

Application.- The provisions of this Chapter shall apply only to the following persons, namely:-(a) every person who has been convicted of an offence punishable under this Act with imprisonment for a term of three years or more;

(b)

every associate of a person referred to in clause (a);

(c)

any holder (hereafter in this clause referred to as the present holder) of any property which was at any time previously held by a person referred to in clause (a) or clause (b) unless the present holder or, as the case may be, any one who held such property after such person and before the present holder, is or was a transferee in good faith for adequate consideration.

58B.

Definitions.- In this Chapter, unless the context otherwise requires,-(a) " Appellate Tribunal" means the Appellate Tribunal for Forfeited Property constituted under section 58N;

(b)

" associate" in relation to a person whose property is liable to be forfeited under this Chapter, includes-(i) any individual who had been or is managing the affairs or keeping the accounts of such person;

(ii)

any association of persons, body of individuals, partnership firm or private company within the meaning of the Companies Act, 1956 (

1 of 1956

) of which such person had been or is a member, partner or director;

(iii)

any individual who had been or is a member, partner or director of an association of persons, body of individuals, partnership firm or private company referred to in sub- clause (ii) at any time when such person had been or is a member, partner or director of such association, body, partnership firm or private company;

(iv)

any person, who had been or is managing the affairs, or keeping the accounts of any association of persons, body of individuals, partnership firm or private company referred to in sub- clause (iii);

(v)

the trustee of any trust, where,-(1) the trust has been created by such person; or

(2)

the value of the assets contributed by such person (including the value of the assets, if any, contributed by him earlier)

to the trust amounts on the date on which contribution is made, to not less than date; twenty per cent. of the value of the assets of the trust on that

(vi)

where the competent authority, for reasons to be recorded in writing, considers that any properties of such person are held on his behalf by any other person, such other person;

(c)

" competent authority" means an officer authorised under section 58D;

(d)

" concealment" means the concealment or disguise of the nature, source, disposition, movement or ownership of property and includes the movement or conversion of such property by electronic transmission or by any other means;

(e)

" freezing" means temporarily prohibiting the transfer, conversion, disposition or movement of property by an order issued under section 58F;

(f)

" identifying" includes establishment of proof that the property was derived from, or used in, the illegal hunting and trade of wild life and its products;

(g)

" illegally acquired property" in relation to any person to whom this Chapter applies, means,-(i) any property acquired by such person, wholly or partly out of or by means of any income, earnings or assets derived or obtained from or attributable to illegal hunting and trade of wild life and its products and derivatives;

(ii)

any property acquired by such person, for a consideration or by any means, wholly or partly traceable to any property referred to in sub- clause (i) or the income or earning from such property, and includes-(A) any property held by such person which would have been, in relation to any previous holder thereof, illegally acquired property under this clause if such previous holder had not ceased to hold it, unless such person or any other person who held the property at any time after such previous holder or, where there are two or more such previous holders, the last of such previous holders is or was a transferee in good faith for adequate consideration;

(B)

any property acquired by such person, for a consideration, or by any means, wholly or partly traceable to any property falling under item (A), or the income or earnings therefrom;

(h)

" property" means property and assets of every description, whether corporeal or incorporeal, movable or immovable, tangible or intangible and deeds and instruments evidencing title to, or interest in, such property or assets, derived from the illegal hunting and trade of wild life and its products;

(i)

" relative" means-(1) spouse of the person;

(2)

brother or sister of the person;

(3)

brother or sister of the spouse of the person;

(4)

any lineal ascendant or descendant of the person;

(5)

any lineal ascendant or descendant of the spouse of the person;

(6)

spouse of a person referred to in sub- clause (2), sub- clause (3), sub- clause (4) or sub- clause (5);

(7)

any lineal descendant of a person referred to in sub- clause (2) or sub- clause (3);

(j)

" tracing" means determining the nature, source, disposition, movement, title or ownership of property;

(k)

" trust" includes any other legal obligation.

58C.

Prohibition of holding illegally acquired property.-(1) From the date of commencement of this Chapter, it shall not be lawful for any person to whom this Chapter applies to hold any illegally acquired property either by himself or through any other person on his behalf.

(2)

Where any person holds such property in contravention of the provisions of sub- section (1), such property shall be liable to be forfeited to the State Government concerned in accordance with the provisions of this Chapter: Provided that no property shall be forfeited under this Chapter if such property was acquired by a person to whom this Act applies before a period of six years from the date on which he was charged for an offence relating to illegal hunting and trade of wild life and its products.

58D.

Competent authority.- The State Government may, by order published in the Official Gazette, authorise any officer not below the rank of Chief Conservator of Forests to perform the functions of the competent authority under this Chapter in respect of such persons or classes of persons as the State Government may, direct.

58E.

Identifying illegally acquired property.-(1) An officer not below the rank of Deputy Inspector General of Police duly authorised by the Central Government or as the case may be, the State Government, shall, on receipt of a complaint from the competent authority about any person having illegally acquired property, proceed to take all steps necessary for tracing and identifying any property illegally acquired by such person.

(2)

The steps referred to in sub- section (1) may include any inquiry, investigation or survey in respect of any person, place, property, assets, documents, books of account in any bank or financial institution or any other relevant step as may be necessary.

(3)

Any inquiry, investigation or survey referred to in sub- section (2) shall be carried out by an officer mentioned in sub- section (1) in accordance with such directions or guidelines as the competent authority may make or issue in this behalf.

58F.

Seizure or freezing of illegally acquired property.-(1) Where any officer conducting an inquiry or investigation under section 58E has reason to believe that any property in relation to which such inquiry or investigation is being conducted is an illegally acquired property and such property is likely to be concealed, transferred or dealt with in any manner which may result in frustrating any proceeding relating to forfeiture of such property under this Chapter, he may make an order for seizing such property and where it is not practicable to seize such property, he may make an order that such property shall not be transferred or otherwise dealt with, except with the prior permission of the officer making such order, or of the competent authority and a copy of such order shall be served on the person concerned: Provided that a copy of such an order shall be sent to the competent authority within forty- eight hours of its being made.

(2)

Any order made under sub- section (1) shall have no effect unless the said order is confirmed by an order of the competent authority within a period of thirty days of its being made. Explanation.- For the purposes of this section, " transfer of property" means any disposition, conveyance, assignment, settlement, delivery, payment or other alienation of property and, without limiting the generality of the foregoing, includes-(a) the creation of a trust in property;

(b)

the grant or creation of any lease, mortgage, charge, easement, licence, power, partnership or interest in property;

(c)

the exercise of a power of appointment, of property vested in any person not the owner of the property, to determine its disposition in favour of any person other than the donee of the power; and

(d)

any transaction entered into by any person with intent thereby to diminish directly or indirectly the value of his own property and to increase the value of the property of any other person.

58G.

Management of properties seized or forfeited under this Chapter.-(1) The State Government may, by order published in

the Official Gazette, appoint as many of its officers (not below the rank of Conservator of Forests) as it thinks fit, to perform the functions of an Administrator.

(2)

The Administrator appointed under sub-section (1) shall receive and manage the property in relation to which an order has been made under sub-section (1) of section 58F or under section 58-I in such manner and subject to such conditions as may be prescribed.

(3)

The Administrator shall also take such measures as the State Government may direct, to dispose of the property which is forfeited to the State Government.

58H.

Notice of forfeiture of property.-(1) If having regard to the value of the properties held by any person to whom this Chapter applies, either by himself or through any other person on his behalf, his known sources of income, earnings or assets, and any other information or material available to it as a result of a report from any officer making an investigation under section 58E or otherwise, the competent authority for reasons to be recorded in writing believes that all or any of such properties are illegally acquired properties, it may serve a notice upon such person (hereinafter referred to as the person affected) calling upon him within a period of thirty days specified in the notice to show cause why all or any of such properties, as the case may be, should not be declared to be illegally acquired properties and forfeited to the State Government under this Chapter and in support of his case indicate the sources of his income, earnings or assets, out of which or by means of which he has acquired such property, the evidence on which he relies and other relevant information and particulars.

(2)

Where a notice under sub-section (1) to any person specifies any property as being held on behalf of such person by any other person, a copy of the notice shall also be served upon such other person.

58I.

Forfeiture of property in certain cases.-(1) The competent authority may, after considering the explanation, if any, to the show cause notice issued under section 58H, and the materials available before it and after giving to the person affected an opportunity of being heard, by order, record a finding whether all or any of the properties in question are illegally acquired properties: Provided that if the person affected (and in a case where the person affected holds any property specified in the notice through any other person, such other person also), does not appear before the competent authority or represent his case before it within a period of thirty days specified in the show cause notice, the competent authority may proceed to record a finding under this sub-section ex parte on the basis of evidence available before it.

(2)

Where the competent authority is satisfied that some of the properties referred to in the show cause notice are illegally acquired properties but is not able to identify specifically such properties, then, it shall be lawful for the competent authority to specify the properties which, to the best of its judgment, are illegally acquired properties and record a finding accordingly under sub-section (1) within a period of ninety days.

(3)

Where the competent authority records a finding under this section to the effect that any property is illegally acquired property, it shall declare that such property shall, subject to the provisions of this Chapter stand forfeited to the State Government free from all encumbrances.

(4)

In case the person affected establishes that the property specified in the notice issued under section 58H is not an illegally acquired property and therefore not liable to be forfeited under the Act, the said notice shall be withdrawn and the property shall be released forthwith.

(5)

Where any shares in a company stand forfeited to the State Government under this Chapter, the company shall, notwithstanding anything contained in the Companies Act, 1956 (

1 of 1956

) or the article of association of the company, forthwith register the State Government as the transferee of such shares.

58J.

Burden of proof.- In any proceedings under this Chapter, the burden of proving that any property specified in the notice served under section 58H is not illegally acquired property shall be on the person affected.

58K.

Fine in lieu of forfeiture.- (1) Where the competent authority makes a declaration that any property stands forfeited to the State Government under section 58-I and it is a case where the source of only a part of the illegally acquired property has not been proved to the satisfaction of the competent authority, it shall make an order giving option to the person affected to pay, in lieu of forfeiture, a fine equal to the market value of such part.

(2)

Before making an order imposing a fine under sub- section (1), the person affected shall be given a reasonable opportunity of being heard.

(3)

Where the person affected pays the fine due under sub- section (1), within such time as may be allowed in that behalf, the competent authority may, by order revoke the declaration of forfeiture under section 58-I and thereupon such property shall stand released.

58L.

Procedure in relation to certain trust properties.- In the case of any person referred to in sub- clause (vi) of clause (b) of section 58B, if the competent authority, on the basis of the information and materials available to it, for reasons to be recorded in writing believes that any property held in trust is illegally acquired property, it may serve a notice upon the author of the trust, or as the case may be, the contributor of the assets out of or by means of which such property was acquired by the trust and the trustees, calling upon them within a period of thirty days specified in the notice, to explain the source of money or other assets out of or by means of which such property was acquired or, as the case may be, the source of money or other assets which were contributed to the trust for acquiring such property and thereupon such notice shall be deemed to be a notice served under section 58H and all the other provisions of this Chapter shall apply accordingly. Explanation.- For the purposes of this section "illegally acquired property" in relation to any property held in trust, includes- (i) any property which if it had continued to be held by the author of the trust or the contributor of such property to the trust would have been illegally acquired property in relation to such author or contributor;

(ii)

any property acquired by the trust out of any contributions made by any person which would have been illegally acquired property in relation to such person had such person acquired such property out of such contributions.

58M.

Certain transfers to be null and void.- Where after the making of an order under sub- section (1) of section 58F or the issue of a notice under section 58H or under section 58L, any property referred to in the said order or notice is transferred by any mode whatsoever, such transfer shall, for the purposes of the proceedings under this Chapter, be ignored and if such property is subsequently forfeited to the State Government under section 58-I, then, the transfer of such property shall be deemed to be null and void.

58N.

Constitution of Appellate Tribunal.- (1) The State Government may, by notification in the Official Gazette, constitute an Appellate Tribunal to be called the Appellate Tribunal for Forfeited Property consisting of a Chairman, and such number of other members (being officers of the State Government not below the rank of a Principal Secretary to the Government), as the State Government thinks fit, to be appointed by that Government for hearing appeals against the orders made under section 58F, section 58-I, sub- section (1) of section 58K or section 58L.

(2)

The Chairman of the Appellate Tribunal shall be a person who is or has been or is qualified to be a Judge of a High Court.

(3)

The terms and conditions of service of the Chairman and other members shall be such as may be prescribed.

58O.

Appeals.- (1) Any person aggrieved by an order of the competent authority made under section 58F, section 58-I, sub- section (1) of section 58K or section 58L may, within forty- five days from the date on which the order is served on him prefer an appeal to the Appellate Tribunal: Provided that the Appellate Tribunal may entertain an appeal after the said

period of forty- five days, but not after sixty days, from the date aforesaid if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2)

On receipt of an appeal under sub- section (1), the Appellate Tribunal may, after giving an opportunity of being heard to the appellant, if he so desires, and after making such further inquiry as it deems fit, confirm, modify or set aside the order appealed against.

(3)

The Appellate Tribunal may regulate its own procedure.

(4)

On application to the Appellate Tribunal and on payment of the prescribed fee, the Appellate Tribunal may allow a party to any appeal or any person authorised in this behalf by such party to inspect at any time during office hours, any relevant records and registers of the Appellate Tribunal and obtain a certified copy or any part thereof.

58P.

Notice or order not to be invalid for error in description.- No notice issued or served, no declaration made, and no order passed under this Chapter shall be deemed to be invalid by reason of any error in the description of the property or person mentioned therein if such property or person is identifiable from the description so mentioned.

58Q.

Bar of jurisdiction.- No order passed or declaration made under this Chapter shall be appealable except as provided therein and no civil court shall have jurisdiction in respect of any matter which the Appellate Tribunal or any competent authority is empowered by or under this Chapter to determine, and no injunction shall be granted by any court or other authority in respect of any action taken or to be taken in pursuance of any power conferred by or under this Chapter.

58R.

Competent Authority and Appellate Tribunal to have powers of civil court.- The competent authority and the Appellate Tribunal shall have all the powers of a civil court while trying a suit under the Code of Civil Procedure, 1908 (5 of 1908) in respect of the following matters, namely:- (a) summoning and enforcing the attendance of any person and examining him on oath;

(b)

requiring the discovery and production of documents;

(c)

receiving evidence on affidavits;

(d)

requisitioning any public record or copy thereof from any court or office;

(e)

issuing commissions for examination of witnesses or documents;

(f)

any other matter which may be prescribed.

58S.

Information to competent authority.- (1) Notwithstanding anything contained in any other law for the time being in force, the competent authority shall have power to require any officer or authority of the Central Government or a State Government or local authority to furnish information in relation to such persons, on points or matters as in the opinion of the competent authority will be useful for, or relevant to, the purposes of this Chapter.

(2)

Every officer referred to in section 58T may furnish suo motu any information available with him to the competent authority if in the opinion of the officer such information will be useful to the competent authority for the purposes of this Chapter.

58T.

Certain officers to assist Administrator, competent authority and Appellate Tribunal.- For the purposes of any proceedings under this Chapter, the following officers shall render such assistance as may be necessary to the Administrator appointed under section 58G, competent authority and the Appellate Tribunal, namely:- (a) officers of Police;

(b)

officers of the State Forest Departments;

(c)

officers of the Central Economic Intelligence Bureau;

(d)

officers of the Directorate of Revenue Intelligence;

(e)

such other officers as specified by the State Government in this behalf by notification in the Official Gazette.

58U.

Power to take possession.-(1) Where any property has been declared to be forfeited to the State Government under this Chapter, or where the person affected has failed to pay the fine due under sub- section (1) of section 58K within the time allowed t erefor under sub- section (3) of that section, the competent authority may order the person affected as well as any other person who may be in possession of the property to surrender or deliver possession thereof to the Administrator appointed under sect on 58G or to any person duly authorised by him in this behalf within thirty days of the service of the order.

(2)

If any person refuses or fails to comply with an order made under sub- section (1), the Administrator may take possession of the property and may for that purpose use such force as may be necessary.

(3)

Notwithstanding anything contained in sub- section (2), the Administrator may, for the purpose of taking possession of any property referred to in sub- section (1) requisition the services of any police officer to assist him and it shall be the duty of such officer to comply with such requisition.

58V.

Rectification of mistakes.- With a view to rectifying any mistake apparent from record, the competent authority or the Appellate Tribunal, as the case may be, may amend any order made by it within a period of one year from the date of the order: Provided that if any such amendment is likely to affect any person prejudicially and the mistake is not of a clerical nature, it shall not be made without giving to such person a reasonable opportunity of being heard.

58W.

Findings under other laws not conclusive for proceedings under this Chapter.- No finding of any officer or authority under any other law shall be conclusive for the purposes of any proceedings under this Chapter.

58X.

Service of notices and orders.- Any notice or order issued or made under this Chapter shall be served,-(a) by tendering the notice or order or sending it by registered post to the person for whom it is intended or to his agent;

(b)

if the notice or order cannot be served in the manner provided in clause (a), then, by affixing it on a conspicuous place in the property in relation to which the notice or order is issued or made or on some conspicuous part of the premises in which he person for whom it is intended is known to have last resided or carried on business or personally worked for gain.

58Y.

Punishment for acquiring property in relation to which proceedings have been taken under this Chapter.- Any person who knowingly acquires, by any mode whatsoever, any property in relation to which proceedings are pending under this Chapter shall be p nishable with imprisonment for a term which may extend to five years and with fine which may extend to fifty thousand rupees.'.

35.

Amendment of section 60A.-

In section 60A of the principal Act,-(i) in sub- section (1), for the words" twenty per cent. of such fine", the words" fifty per cent. of such fine" shall be substituted;

(ii)

in sub- section (2), for the words" twenty per cent. of such money", the words" fifty per cent. of such money" shall be substituted.

36.

Insertion of new section 60B.-

After section 60A of the principal Act, the following section shall be inserted, namely:-" 60B. Reward by State Government.- The State Government may empower the Chief Wild Life Warden to order payment of reward not exceeding ten thousand rupees to be paid to a person who renders assistance in the detection of the offence or the apprehension of the offender, from such fund and in such manner as may be prescribed."

37.

Amendment of section 63.-

In section 63 of the principal Act, in sub- section 1, the following clause shall be inserted, namely:-" (ai) the term of office of members other than those who are members ex officio; the manner of filling vacancies, the procedure to be followed by the National Board under sub- section (2) and allowances of those members under sub- section (3) of section 5A".

38.

Amendment of section 64.-

In section 64 of the principal Act, in sub- section (2),-(i) for clauses (a) and (b), the following clauses shall be substituted, namely:-" (a) the term of office of members other than those who are members, ex officio, the manner of filling vacancies and the procedure to be followed by the Board under sub- section (2) of section 6;(b) allowances referred to in sub- section (3) of section 6;"

(ii)

after clause (d), the following clause shall be inserted, namely:-" (dd) the conditions subject to which the officers will be authorised to file cases in the court;"

(iii)

after clause (g), the following clauses shall be inserted, namely:-" (ga) the manner and conditions subject to which the Administrator shall receive and manage the property under sub- section (2) of section 58G;(gb) the terms and conditions of service of the Chairman and other members under sub- section (3) of section 58N;

(gc)

the fund from which and the manner in which payment of reward under section 60B shall be made;". ---- K. N. CHATURVEDI, Additional Secy. to the Govt. of India.

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